

PHILLIPS, ET AL. VS. PRIME HEALTHCARE SERVICES, INC., ET AL.

CASE NUMBER: 25CV-0208680

Tentative Ruling on Demurrer (by Defendant County of Shasta): Defendant County of Shasta demurs to the Second Amended Complaint filed by Plaintiffs Fredrick James Phillips and Heather Lynn Phillips. Plaintiffs oppose the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Dominick Hurley provides evidence of sufficient meet and confer efforts.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

The County demurs to the Second Cause of Action for violation of the Confidentiality of Medical Information Act (CMIA), the Third Cause of Action for dependent adult abuse and neglect, the Fourth Cause of Action for negligence, the Seventh Cause of Action for disability discrimination and failure to provide reasonable accommodation, and the Ninth Cause of action for declaratory and injunctive relief. The County demurs on the grounds that the Third, Fourth, and Seventh Causes of Action are precluded by the County’s immunity from liability, the Fourth Cause of action as improperly pled, and on all causes of action for failure to state facts sufficient to constitute a cause of action.

Fourth Cause of Action for Negligence. The Fourth Cause of Action for negligence is a new cause of action not previously raised in the original Complaint or First Amended Complaint. “The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.” *Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023. Plaintiff does not dispute that leave of court to include the negligence cause of action was not previously obtained. As such, its addition is inappropriate and the Fourth Cause of Action is hereby **STRICKEN**. Plaintiff is required to file a separate motion to properly request permission to include a negligence cause of action.

Immunity. Defendant demurrers on the Third, Fourth, and Seventh Causes of Action on the grounds that they are immune from liability. The grounds of immunity were not previously raised in the County’s first demurrer. “A party demurring to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer.” CCP § 430.40(b). “If the party against whom a complaint or cross-complaint has been filed fails to object to the pleading, either by demurrer or answer, that party is deemed to have waived the objection unless it is an objection that the court has no jurisdiction of the subject of the cause of action alleged in the pleading or an objection that the pleading does not state facts sufficient to constitute a cause of action.” CCP § 430.80(a). Here, the County’s first demurrer was sustained as to these causes of action.

This matter was originally set for hearing on August 3, 2026, and was continued regarding the applicability of

CCP § 430.40(b) to the grounds of immunity on demurrer. The parties were directed to brief the issue no later than August 14, 2026. The Court notes there was a typographical error in the Court's tentative ruling dated August 3, 2026, which requests briefing regarding the applicability of CCP § 430.10(b). This was in error. The County did not provide further briefing. Plaintiff provided briefing but addressed the applicability of CCP § 430.10(b), not CCP § 430.40(b). The Court finds this typographical error does not prejudice the parties, as the correct section was referred to throughout the tentative ruling adopted by the Court and does not change the outcome of the demurrer.

Pursuant to CCP § 430.40(b), the County is precluded from raising the grounds of immunity on a subsequent demurrer because it was not raised in the first demurrer. The demurrer is **OVERRULED** on the ground of immunity.

Second Cause of Action for Violation of the Confidentiality Medical Information Act. The County demurs to the Second Cause of Action for failure to state facts sufficient to constitute a cause of action. The County argues, and Plaintiff does not dispute, that the County merely requesting medical records is not a violation of the CMIA. Additionally, the County argues that the Second Amended Complaint fails to provide details regarding the violation.

The CMIA “is intended to protect the confidentiality of individually identifiable medical information obtained from a patient by a health care provider, while at the same time setting forth limited circumstances in which the release of such information to specified entities or individuals is permissible.” *Loder v. City of Glendale* (1997) 14 Cal.4th 846, 859. The CMIA is codified as Civ. Code § 56.10. Section (a) states that “[a] provider of health care, health care service plan, or contractor shall not disclose medical information regarding a patient of the provider of health care or an enrollee or subscriber of a health care service plan without first obtaining an authorization, except as provided in subdivision (b) or (c).” “[I]n order to violate the act, a provider of health care must make an unauthorized, unexcused disclosure of privileged medical information. A provider is relieved from liability under the act if it can show that the disclosure is excepted either by the mandatory (§ 56.10, subd. (b)) or permissive (§ 56.10(c)(4)) provisions of the act, allowing disclosure of medical information under specified circumstances.” *Heller v. Norcal Mutual Ins. Co.* (1994) 8 Cal.4th 30, 38.

The Second Amended Complaint makes several allegations not applicable to a CMIA violation, including claims of unlawful procurement of medical information. This does not constitute a violation of the CMIA. However the Second Amended Complaint also alleges that (1) the County failed to implement, follow, or enforce procedures reasonably designed to safeguard Plaintiff's medical information against unauthorized access, disclosure, or use; (2) in responding to post-incident requests and proceedings the County disclosed or transmitted medical records containing Plaintiff's confidential medical information without CMIA compliant review, redaction, or safeguards; (3) and the disclosures were made without authorization. The County does not contend that an exception applies to the alleged disclosures. The Court finds the Second Cause of Action is sufficiently pled and the demurrer is **OVERRULED** on the grounds that it fails to state facts sufficient to constitute a cause of action.

Third Cause of Action for Dependent Adult Abuse and Neglect. The County demurs to the Third Cause of Action on the grounds that it is not a “care custodian” for the purposes of a claim under the Elder Abuse and Dependent Adult Civil Protection Act (EADACPA) and for failure to state facts sufficient to constitute a cause of action. The grounds that the County is not a “care custodian” for the purposes of a claim under the EADACPA was not raised in the first demurrer. For the same reasons stated above regarding CCP § 430.40(b), the argument is precluded from being raised on a subsequent demurrer.

The County argues that the Second Amended Complaint lacks facts sufficient to show “neglect” within the meaning of W&I § 15610.57, or “reckless, oppression, fraud, or malice, sufficient to warrant an enhanced remedy provided by W&I § 15657. The County further argues that the Second Amended Complaint fails to provide what

mobility assistance was requested, required, or provided.

Under W&I § 15610.57(a), “[n]eglect” means either of the following: (1) The negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise. (2) The negligent failure of an elder or dependent adult to exercise that degree of self care that a reasonable person in a like position would exercise.” (b) Neglect includes, but is not limited to, all of the following:... (2) Failure to provide medical care for physical and mental health needs. A person shall not be deemed neglected or abused for the sole reason that the person voluntarily relies on treatment by spiritual means through prayer alone in lieu of medical treatment. (3) Failure to protect from health and safety hazards...” W&I § 15610.57(b).

The Second Amended Complaint alleges that (1) the County is a care custodian; (2) that Plaintiff is a dependent adult; and (3) the County failed “to provide medical care for physical and mental health needs and failure[d] to protect Plaintiff from health and safety hazards. Negligence is sufficiently pled.

W&I § 15657 provides for heightened remedies “[i]f it is proven by clear and convincing evidence, or by a preponderance of the evidence pursuant to Section 15657.02, that a defendant is liable for physical abuse as defined in Section 15610.63, neglect as defined in Section 15610.57, or abandonment as defined in Section 15610.05, and that the defendant has been guilty of recklessness, oppression, fraud, or malice in the commission of this abuse.”

As stated above, negligence under W&I § 15610.57 has been sufficiently pled. The Second Amended Complaint also alleges that “Defendants acted with recklessness, oppression, fraud, or malice, including by consciously disregarding Plaintiff’s known life-threatening condition and custodial dependency.” Evidence of Defendant’s conduct is not required at the pleading stage, therefore the Second Amended Complaint sufficiently pleads heightened remedies under W&I § 15657.

Additionally, the County argues that the Second Amended Complaint fails to state what mobility assistance was requested, required, or provided. The Second Amended Complaint alleges that Plaintiff requested mobility accommodations on several occasions and that the County “refused”, “denied” or “ignored” the requests. Heightened specificity regarding the content of the requests is not required at the pleading stage, therefore the Second Amended Complaint sufficiently alleges a failure to provide mobility assistance.

The demurrer is **OVERRULED** on the Third Cause of Action for failure to state facts sufficient to constitute a cause of action.

Seventh Cause of Action for Disability Discrimination and Failure to Provide Reasonable Accommodation. The County demurs to the Seventh Cause of Action for failure to state facts sufficient to constitute a cause of action under Gov. Code § 11135 and Civ. Code § 54.1.

Under Gov. Code § 11135:

“No person in the State of California shall, on the basis of sex, race, color, religion, ancestry, national origin, ethnic group identification, age, mental disability, physical disability, medical condition, genetic information, marital status, or sexual orientation, be unlawfully denied full and equal access to the benefits of, or be unlawfully subjected to discrimination under, any program or activity that is conducted, operated, or administered by the state or by any state agency, is funded directly by the state, or receives any financial assistance from the state.”

Here, the Second Amended Complaint alleges that (1) Plaintiff is a person with a disability within the meaning of Gov. Code § 11135; (2) the County is a public entity that received state financial assistance; and (3) Plaintiff

was denied equal access to services on the basis of his disability. The Court finds a cause of action under Gov. Code § 11135 is sufficiently pled.

In relevant part, Civ. Code § 54.1 provides that:

“Individuals with disabilities shall be entitled to full and equal access, as other members of the general public, to accommodations, advantages, facilities, medical facilities, including hospitals, clinics, and physicians’ offices, and privileges of all common carriers, airplanes, motor vehicles, railroad trains, motorbuses, streetcars, boats, or any other public conveyances or modes of transportation (whether private, public, franchised, licensed, contracted, or otherwise provided), telephone facilities, adoption agencies, private schools, hotels, lodging places, places of public accommodation, amusement, or resort, and other places to which the general public is invited, subject only to the conditions and limitations established by law, or state or federal regulation, and applicable alike to all persons.”

While the Second Amended Complaint alleges that Plaintiff is a person with a disability and that he was denied equal access to services based on his disability, it fails to allege that Plaintiff was denied full and equal access to a place in which the general public is invited. A jail is not specifically listed as a qualifying location and is not a place in which the general public is invited. The Court finds the Second Amended Complaint fails to sufficiently plead a cause of action under Civ. Code § 54.1.

Considering Plaintiff has sufficiently pled a disability discrimination claim under Gov. Code § 11135, the demurrer is **OVERRULED** as to the Seventh Cause of Action.

Ninth Cause of Action for declaratory and injunctive relief. The County demurs to the Ninth Cause of Action for failure to state facts sufficient to constitute a cause of action and on the basis that no viable cause of action exists to warrant injunctive relief.

The County argues that the Second Amended Complaint fails to allege what legal rights the use or retention of Plaintiff’s records violated and that there is no controversy. “A complaint for declaratory relief must demonstrate: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party.” *Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410. “The “actual controversy” requirement concerns the existence of *present* controversy relating to the legal rights and duties of the respective parties pursuant to contract (Code Civ. Proc., § 1060), statute or order.” *Id.*

While the Second Amended Complaint alleges that the County violated Plaintiff’s rights under the CMIA, it fails to allege what rights of Plaintiff are being violated related to the relief requested in the Ninth Cause of Action. Additionally, a present controversy has not been alleged. Plaintiff has provided facts regarding the County’s alleged past conduct concerning his medical records but makes no allegations that the County is presently utilizing the records in violation of Plaintiff’s rights. The Court finds the request for declaratory relief has not been sufficiently pled.

Additionally, the County argues that Plaintiff has failed to assert a cause of action against the County therefore injunctive relief is not an available remedy. Considering the court has overruled the demurrer as stated above, the causes of action survive and injunctive relief as a remedy may be available.

The Court notes that in regard to the Ninth Cause of Action, the County argues that the demurrer should be sustained as to Plaintiff Heather Phillips’ medical records because they are not at issue. The Ninth Cause of Action in the Second Amended Complaint only pertains to Plaintiff Frederick Phillips, therefore the argument is moot.

The demurrer as to the Ninth Cause of Action is **OVERRULED** as to the claims for injunctive relief and **SUSTAINED** as to the claims for declaratory relief for failure to state facts sufficient to a cause of action.

In summary, the Demurrer is **OVERRULED** as to the Second, Third, and Seventh Causes of Action on all grounds. The Demurrer regarding the Ninth Cause of Action is **OVERRULED** as to the injunctive relief claims and **SUSTAINED** with leave to amend as to the declaratory relief claims. The Fourth Cause of Action for Negligence is **STRICKEN** as improperly included in the Second Amended Complaint without leave of Court. Plaintiffs are to file a Third Amended Complaint within ten (10) calendar days from today. Defendant's response is due pursuant to statute. The County is to prepare an Order consistent with the Court's ruling.

Tentative Ruling on Demurrer (by Defendant City of Redding): Defendants City of Redding, Bryan Cowan, Cameron Hooks, Devin Ketel, Chad Manley, Ben Omey, Jacob Ruiz, and Byron Upshaw demur to the Second Amended Complaint filed by Plaintiffs Fredrick James Phillips and Heather Lynn Phillips. Plaintiffs oppose the Demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to "meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." The Declaration of Tracey A. Werner provides evidence of sufficient meet and confer efforts.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to "state facts sufficient to constitute a valid cause of action." CCP § 430.10(e). The Court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff's allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff's causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

The City demurs to the Ninth Cause of Action and only cause of action against the City for declaratory and injunctive relief on the grounds that it fails to state a claim and is ambiguous and unclear.

Failure to state a claim. CCP § 1060 allows a party seeking a declaration of his or her rights or duties with respect to another, in cases of actual controversy relating to the legal rights and duties, to bring a complaint for a declaration of rights. "A complaint for declaratory relief must demonstrate: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party." *Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410. "The "actual controversy" requirement concerns the existence of *present* controversy relating to the legal rights and duties of the respective parties pursuant to contract (Code Civ. Proc., § 1060), statute or order." *Id.* The Second Amended Complaint alleges that the City has violated Plaintiff's rights under Pen. Code § 851.92 and 851.93 and breached its obligations under Gov. Code § 12525.2.

Pen. Code § 851.92 applies when an arrest record is sealed pursuant to Sections 851.87, 851.90, 851.91, 1000.4, and 1001.9 and covers arrest records, police investigation reports, and court records. Arrest record is defined as "information about the arrest or detention that is contained in either of the following: (A) The master, or a copy of the master, local summary criminal history information, as defined in subdivision (a) of Section 13300. (B) The master, or a copy of the master, state summary criminal history information as defined in subparagraph (A) of paragraph (2) of subdivision (a) of Section 11105." Pen. Code § 851.92(d). The Second Amended Complaint and opposition both allege the existence of a court order for "sealing" after dismissal of the criminal proceedings and the continued dissemination of government-controlled body-worn camera footage and related arrest materials.

While body-worn camera footage is not a covered record under Pen. Code § 851.92, other “related arrest materials” could be. Neither a copy of the sealing order nor detailed information about the “related arrest material” has been provided, so it is unclear what information is covered by the sealing order and whether it pertains to other “related arrest materials.” However, a claim under Pen. Code § 851.92 has been sufficiently alleged at the pleading stage.

Pen Code § 851.93 relates to arrest record relief through review by the Department of Justice. Therefore this section does not apply to the City. Gov. Code § 12525.2 requires each law enforcement agency to furnish information to the Department of Justice related to all instances when a peace officer is involved in particular incidents. “A violation of a state statute does not automatically give rise to a right of recovery by a private individual. Courts will allow a private right of action only where a statute allows one.” *Lagrisola v. North American Financial Corp.* (2023) 96 Cal.App.5th 1178, 1196. Here, the statute does not confer a right to allege a private cause of action and does not apply.

The Second Amended Complaint sufficiently alleges an actual controversy supported by the opposition. Both allege that the City continues to disseminate arrest related information. This creates a present controversy since the dissemination is allegedly ongoing.

The Second Amended Complaint sufficiently alleges a claim under Pen. Code § 851.92 and there is an actual controversy. The demurrer is **OVERRULED** on the grounds that the Ninth Cause of Action fails to state a claim.

Ambiguity and uncertainty. The City also demurs on the grounds that it is unclear what declaratory or injunctive relief Plaintiff seeks regarding the City. The Second Amended Complaint is not unclear and specifically states that Plaintiffs seek a declaration regarding “whether the City may continue to maintain, publish, or otherwise disseminate government-controlled body-worn camera footage and related arrest materials that disclose Plaintiff’s confidential medical information, disability status, and treatment needs without redaction or limitation after the related criminal matter was dismissed and sealed.” The Second Amended Complaint also seeks a declaration regarding the City’s obligations under Gov. Code § 12525.2 to “accurately report qualifying use-of-force incidents and the statutorily required data fields.” Additionally, the Second Amended Complaint requests injunctive relief by requiring the City to remove any government-controlled arrested related audiovisual materials covered by the criminal matter sealing order and statutes. While these requests may or may not have merit, they are not ambiguous.

The demurrer is **OVERRULED** on the grounds that the Ninth Cause of action is ambiguous and uncertain.

In summary, the Demurrer is **OVERRULED** as to the Ninth Cause of Action. The City has submitted a proposed order that will be modified to reflect the Court’s ruling.

Tentative Ruling on Demurrer (by Defendant Prime Healthcare Services and SRMC): Defendants Prime Healthcare Services- Shasta LLC dba Shasta Regional Medical Center (“SRMC”) and Prime Healthcare Services, Inc. (collectively “Defendants”) demur to the Second Amended Complaint filed by Plaintiffs Fredrick James Phillips and Heather Lynn Phillips. Plaintiffs oppose the demurrer.

Meet and Confer. CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The initial declaration of John MacRill III provides evidence of sufficient meet and confer efforts. However, Plaintiffs’ declaration and a subsequent declaration filed by John MacRill III indicate that the parties failed to meet and confer on the demurrer to the First Cause of Action prior to the filing of the demurrer.

Merits. A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). The Court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

Defendants demur to the First Cause of Action for battery, the Third Cause of Action for dependent adult abuse and neglect, and the Sixth Cause of Action for disability discrimination and failure to provide reasonable accommodation. The grounds for Defendants’ demurrer are that the First, Third, and Sixth Causes of Action for failure to state facts sufficient to constitute a cause of action and are uncertain. Additionally, Defendants demur to the Third Cause of Action on the grounds that the cause of action exceeds the scope of the Court’s order sustaining Defendants’ demurrer with leave to amend to Plaintiffs’ First Amended Complaint.

First Cause of Action for Battery. “The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant’s conduct; and (4) a reasonable person in plaintiff’s position would have been offended by the touching.” *So v. Shin* (2013) 212 Cal.App.4th 652, 668.

The Second Amended Complaint alleges that (1) “Defendant SRMC Security Doe intentionally touched plaintiff by grabbing/ pushing him causing him to lose balance and fall into a chair,” “applied unwanted force... by pushing him to walk faster than he was able to walk without mobility accommodation,” and “applied unwanted force by grabbing and slamming Plaintiff down into his chair;” (2) that the physical contact was without consent; (3) that Plaintiff was caused pain, distress, and humiliation and further injury to his wrist and hip. The Second Amended Complaint fails to allege that Defendant SRMC Security Doe acted with the requisite intent to harm or offend Plaintiff or that a reasonable person in Plaintiff’s position would have been offended by the contact. Plaintiff argues that malintent may be inferred under the circumstances. However all required elements must be pled to maintain a claim for battery.

Additionally, Defendants argue that the Second Amended Complaint is uncertain regarding SRMC’s role in the alleged battery. Plaintiff alleges that Defendant SRMC Security Doe was an employee, agent, servant, and/or security personnel acting on behalf of Defendant Prime, and that therefore Defendants are liable for the conduct under a theory of respondeat superior. The role of Defendants in the claim is not ambiguous. Plaintiff has alleged Defendants’ role in the action as the employer of SRMC Security Doe.

The opposition demonstrates that Plaintiff may be able to cure the issues raised above. The demurrer as to the First Cause of Action is **SUSTAINED** with leave to amend regarding whether the SRMC security Doe acted with the requisite intent to harm or offend Plaintiff and whether a reasonable person in Plaintiff’s position would have been offended by the contact.

Third Cause of Action for Dependent Adult Abuse and Neglect. The Third Cause of Action is a new claim not previously raised against Defendants in the original Complaint or First Amended Complaint. Defendants contend that this addition exceeds the scope of the leave to amend granted in the Court’s ruling on the previous demurrer. “The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.” *Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023. The first demurrer was sustained with leave to amend but did not authorize Plaintiffs to add a new cause of action against Defendants. Plaintiffs did not obtain prior

authorization, therefore the demurrer is **SUSTAINED** without leave to amend.

Sixth Cause of Action for Disability Discrimination and Failure to Provide Reasonable Accommodation. Defendants allege it is unclear what is being alleged against them because it is based on three Civil Codes (Civ. Code § 51, 52, and 54.1) and does not separate them out. Civ. Code § 51, also known as the Unruh Civil rights Act, prohibits discrimination based sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, ensures “full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever.” Civ. Code § 52 imposes liability for violations of Civ. Code § 51. Therefore, it is not necessary to plead Civ. Code § 51 and § 52 as two separate claims.

Defendants also argue that the Sixth Cause of Action fails to state facts sufficient to constitute a cause of action. “To state a claim under the Unruh Civil Rights Act, a plaintiff must allege the defendant is a business establishment that intentionally discriminates against and/or denies plaintiff full and equal treatment of a service, advantage, or accommodation based on plaintiff’s protected status.” *Liapes v. Facebook, Inc.* (2023) 95 Cal.App.5th 910, 922. Civ. Code § 54 adds that “[i]ndividuals with disabilities shall be entitled to full and equal access, as other members of the general public, to accommodations, advantages, facilities, medical facilities, including hospitals, ... and other places to which the general public is invited, subject only to the conditions and limitations established by law, or state or federal regulation, and applicable alike to all persons.”

The Second Amended Complaint alleges (1) Defendant Prime Healthcare Services, Inc. operates SRMC, and that SRMC is a licensed hospital and healthcare facility; (2) that Plaintiff requested reasonable accommodation for his disability; (3) Defendants failed to provide the requested accommodation, and (4) that Defendants’ conduct “discriminated against Plaintiff on the basis of disability by denying him access to full and equal services at SRMC in violation of Civ. Code sections 51 and 54.1.”

Civ. Code § 54.1 is part of the Disabled Persons Act and provides that “[i]ndividuals with disabilities shall be entitled to full and equal access, as other members of the general public, to accommodations, advantages, facilities, medical facilities, including hospitals and other places to which the general public is invited, subject only to the conditions and limitations established by law, or state or federal regulation, and applicable alike to all persons.” Civ. Code § 54.1(a). Much like Civ. Code § 52, Civ. Code § 54.3 imposes liability for a violation of Civ. Code § 54.1, and states that “any person or persons, firm or corporation who denies or interferes with admittance to or enjoyment of the public facilities as specified in Sections 54 and 54.1 or otherwise interferes with the rights of an individual with a disability under Sections 54, 54.1 and 54.2 is liable for each offense.” There is no requirement that a Plaintiff plead intentional discrimination, just interference with the rights of an individual with a disability. As explained above, the Second Amended Complaint alleges Defendants denied him full access and equal services based on his disability. The claim is sufficiently pled under Civ. Code § 54.1.

The demurrer is **OVERRULED** as to the claims under Civ. Code § 54.1 under the Sixth Cause of Action.

In summary, the Demurrer is **OVERRULED** as to the Sixth Cause of Action. The Demurrer regarding the First Cause of Action is **SUSTAINED** with leave to amend. The Demurrer is **SUSTAINED** without leave to amend as to the Third Cause of Action.

Plaintiffs are to file a Third Amended Complaint within ten (10) calendar days from today. Defendant’s response is due pursuant to statute. Defendants are to prepare an Order consistent with the Court’s ruling.

Tentative Ruling on Motion to Strike (by Prime Healthcare Services, Inc. and SRMC): Defendant Prime Healthcare Services – Shasta, LLC dba Shasta Regional Medical Center moves to strike portions of the First Amended Complaint (FAC) filed by Plaintiffs Fredrick James Phillips and Heather Lynn Phillips. Plaintiffs

oppose the motion.

Meet and Confer. The Court finds that Defendant has provided sufficient evidence of meet and confer evidence prior filing the motion.

Merits. The Court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

CCP § 436

A motion to strike can be used to attack the entire pleading, or any part thereof, including single words or phrases. *Stearns Ranchos v. Atchison Topeka & Santa Fe Railway* (1981) 19 Cal. App. 3d 24. “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” CCP § 437(a).

Added Defendants. Defendants request that the added defendants, Debra Miguel R.N. and Amacio Rogan R.N. be stricken from the Second Amended Complaint due to Plaintiff’s failure to receive prior permission from the Court. The Court previously sustained Defendants’ demurrer to the First Amended Complaint with leave to amend, but this permission did not include the ability to make Doe substitutions. Plaintiffs need to follow the proper procedure to effect Doe substitutions. The request to strike defendants Debra Miguel R.N. and Amacio Rogan R.N. is **GRANTED**.

Punitive damages. Defendants seek to strike the prayer for relief for punitive damages against Defendants from the Second Amended Complaint. As noted in the Court’s ruling on Defendant’s demurrer to the First Amended Complaint, Plaintiffs cannot seek punitive damages against Defendants without first complying with CCP § 425.13, which requires court permission to plead punitive damages alleging professional negligence against a healthcare provider upon a showing that there is a substantial likelihood of succeeding on the claim. Plaintiffs have not sought leave of court to demonstrate a substantial probability that they will prevail on the claim. The Court previously struck punitive damages for failure to comply with CCP § 425.13. The request to strike the prayer for relief for punitive damages is, once again, **GRANTED**.

Attorney’s fees. Defendants argue that attorney’s fees are only permitted by statute and, because Plaintiffs failed to state a sufficient cause of action that permits attorney’s fees, the request should be stricken. Plaintiffs’ prayer for relief for attorney’s fees relates to the cause of action for dependent adult abuse. As stated in the Court’s tentative ruling on Defendant’s demurrer to the Second Amended Complaint, Plaintiffs have failed to state a valid cause of action for dependent adult abuse. However, the Court’s tentative ruling on Defendant’s prior motion to strike pointed out that the cause of action for disability discrimination is the only claim that could possibly provide for attorney’s fees. As discussed in the Court’s tentative ruling on Defendants’ demurrer to the Second Amended Complaint, the Court is overruling the demurrer as to the disability discrimination claim. Therefore, the motion to strike attorney’s fees is **DENIED**.

Remaining requests. Defendants further seek to strike the following selections from the Second Amended Complaint:

1. Page 22 ¶ 215; “Defendants acted with recklessness, oppression, fraud, or malice including consciously disregarding Plaintiff’s known life-threatening condition and custodial dependency.” This paragraph is specific to the cause of action against the County. Considering the County’s demurrer to the Third Cause of Action was overruled, the request to strike is **DENIED**.

2. Page 24 ¶ 231; “Defendants acted with recklessness, oppression, fraud, or malice, including by consciously disregarding Plaintiff’s known hemophilia, mobility impairment, hygiene needs, and medical vulnerability.” The demurrer to the Third Cause of Action was sustained without leave to amend, therefore the request to strike this section is **GRANTED** without leave to amend.
3. Page 24 ¶ 233; “Plaintiff is entitled to compensatory damages according to proof and to enhanced remedies under Welfare and Institutions Code § 15657, including attorney’s fees and costs, as permitted by law.” Compensatory damages under W&I §15657 relate to the cause of action for dependent adult abuse. As stated above, the demurrer to this cause of action is sustained without leave to amend so the request to strike is **GRANTED** without leave to amend.
4. Page 24 ¶ 234; “Plaintiff is entitled to [punitive] damages against individual Defendants where permitted by law.” As stated above, the request for punitive damage is stricken. Therefore the request to strike this section is also **GRANTED** without leave to amend.
5. Page 34 ¶ 308(b); “For statutory damages and enhanced remedies as available by law, including:... b. against Defendants Prime Healthcare Services, Inc., Prime Healthcare Services- Shasta, LLC dba Shasta Regional Medical Center, Dr. Lloyd Peña, Dr. Garcia, Debra Miguel, R.N., Amacio Rogan, R.N., and Doe medical defendants on the claims arising under Civil Code sections 51, 52, 54.1, 56, et. seq. and Welfare and Institutions Code section 15657, to the extent permitted by law.”-

As explained above, the request to strike the references to Debra Miguel R.N., and Amacio Rogan R.N. is **GRANTED** with leave to amend.

The request to strike the reference to W&I Code § 15657 is also **GRANTED** with prejudice considering the dependent adult abuse claim is sustained without leave to amend.

The request to strike the references to Civ. Code § 51, 52, and 56 is **GRANTED** without leave to amend because Plaintiffs failed to sufficiently plead a valid cause of action against Defendants under these sections.

The remaining request to strike the reference to statutory damages and enhanced remedies under Civ. Code § 54.1 is **DENIED** because Plaintiffs have sufficiently pled a cause of action under this section.

6. Page 35 ¶ 309; “For punitive damages against individual Defendants where permitted by law.”- As stated above, the request for punitive damage is stricken with prejudice, therefore the request to strike this section is also **GRANTED** without leave to amend
7. Page 36 ¶ 314; “For attorney’s fees and costs where authorized by statute or other law.”- As explained above, the demurrer to the Sixth Cause of Action is overruled, therefore the request to strike is **DENIED**.

The motion is **GRANTED** in part and **DENIED** in part as outlined above. Defendants are to prepare an Order consistent with the Court’s ruling.

WARD, ET AL. VS. LEVINDOFSKE, ET AL.

CASE NUMBER: 25CV-0207586

Tentative Ruling on Motion to Strike: Defendants Sierra Pacific Industries, Inc. and Austin Michael Levindofske move to strike portions of the First Amended Complaint (FAC) relating to Plaintiff’s allegations in support of punitive and exemplary damages in paragraphs 2, 33-35, 36, as well as the associated prayer for relief.